

		Lastly, Plaintiff seeks to strike the prayer for attorney's fees on the grounds that no basis for such recovery is alleged. It is "well-established [] that in the absence of a special statute or a contractual provision for attorney's fees, the prevailing party is not entitled to recover attorney's fees from his opponent." (Olson v. Arnett (1980) 113 Cal.App.3d 59, 67.) Here, Defendant does not allege any statutory or contractual bases for its request for attorney's fees. Thus, the Motion to Strike as to attorney's fees is GRANTED with 20 days leave to amend. Moving party to give notice
105	Smith vs. Serna 25-01504168	Motion to Strike Attorneys' Fees from Cross-Complaint Cross-Defendant, San Diego Gas & Electric Company moves for an order striking attorneys' fees allegations in the Cross-Complaint of Samuel Joseph Serna and California Professional Engineering, Inc. at paragraphs 12, 16, 22, and 23, and the Prayer at page 6, paragraph 3. The Motion to Strike is GRANTED, with 10 days' leave to amend. Cross-Complainants, Samuel Joseph Serna and California Professional Engineering, Inc., provide that they sought to file an Amended Cross-Complaint that withdrew the attorneys' fees, but it was rejected, and seek leave to file an Amended Cross-Complaint withdrawing attorneys' fees. Thus, Cross-Complainants concede to Cross-Defendant San Diego Gas & Electric Company's argument that the prayer for attorneys' fees should be stricken as the prayer and allegations for attorneys' fees are not supported by the allegations of the Cross-Complaint or operative complaint. (ROA 92, Declaration of Bahareh Habibi, ¶¶ 2-5.) Cross-Complainants to file and serve an amended cross-complaint within 10 days. The amended cross-complaint must be serially numbered to differentiate it

		from previous pleadings. (See California Rules of Court, rule 3.1324(a)(1).) Cross-Defendant to give notice
106	Hillsboro Brown Capital, LLC vs. Taft 19-01087702	Motion to Be Relieved as Counsel of Record Gina M. Austin and Tamara Rozmus of Austin Legal Group (“Moving Attorneys”) move to be relieved as counsel of record for CMX Distribution Inc. A motion to be relieved as counsel must be accompanied by a declaration on the mandatory Declaration in Support of Attorney’s Motion to Be Relieved as Counsel-Civil (form MC-052). Without that form, the Court cannot determine whether service on the client was properly done at the last known address and what steps were made to confirm that the client’s last known address is current. The hearing on the motion is CONTINUED to 08/04/2026 at 10:00 AM. Moving Attorneys are ORDERED to file a supplemental declaration on the correct form with all required information. Moving Attorneys are also ORDERED to file a revised proposed order reflecting all currently pending hearing dates. These filings are to be submitted no later than nine court days before the continued hearing date. Moving Attorneys to give notice.
108	Schiller vs. Fivefold Properties Dunnegan, LLC 24-01380115	1. Motion to Enforce Court Order 2. Order to Show Cause re: Default as to Fivefold Properties Dunnegan LLC Plaintiff Shanti Schiller (“Plaintiff”) will and hereby does move the Court for an order (1) compelling Defendant Jennifer Leonard (“Defendant”) to comply with the Court’s February 5, 2026 order (the “Order”);